

DESCRIPTION/SPECIFICATIONS/STATEMENT OF WORK

SECTION A– DESCRIPTION OF WORK

The Missoula Ranger District of the Lolo National Forest requires pre-commercial tree thinning and stand improvement activities to reduce the tree density, mitigate fuels hazard and, by the deliberate selection of leave trees, improve the overall health and condition of the stand based on the prescribed objectives. Tree selection and cutting of undesirable or excess trees will provide space for the leave trees to grow and develop and reduce the incidence of insects and diseases that affect growth. Tree thinning and associated slash treatment work also reduces hazardous fuels and uncharacteristic fire behavior on National Forest Lands.

LOCATION: The areas are within the boundaries of the Lolo National Forest in Montana, near Tyler Creek, about 33 miles east of Missoula. See maps provided in Exhibit 02.

Pre-Award Site Visit: The Government is not hosting pre-award site visit(s) for the purposes of this anticipated contract; all quote(s) are responsible for satisfying any questions they may have regarding site/ground/road conditions, distance(s) and any other related information that may affect their pricing, prior to submission of quote, and prior to award of contract.

BOUNDARIES: The boundaries of the contract units are marked with pink vinyl ribbon and are provided virtually via georeferenced maps. The contractor will be provided georeferenced PDF maps that can be utilized through Avenza Maps on a smart phone or tablet. No work will be conducted on private property; All units stop at the Forest Service boundary. Units are on acquired land with some outdated permanent boundary placards. Boundary units should be discussed with an inspector or COR prior to commencing work to ensure boundaries are known.

ACCESS: The Contractor may access the units from forest roads indicated on project maps. The Contractor shall clear any trees that block roads needed to access units. The Forest Service assumes no obligation to do any special maintenance to keep roads open.

- a) **Locked Gates.** In cases where units are behind locked gates, the Contractor shall close and lock gates after entering or exiting each gate. Contractor shall be subject to all other restrictions of administrative use, including posting signs for the public as directed by District policy. The Contractor shall be permitted to drive from the locked gate to the unit with only the minimum number of vehicles necessary for efficient transport of the crew. No firearms are permitted behind locked gates. Vehicle access will be prohibited behind locked gates during Montana's big game hunting season, which generally begins around October 15th of each year.

FOOD STORAGE ORDER: The Contractor shall maintain a clean work area. The contractor shall comply with the Northern Region Food Storage Order R1-2023-02 available at: <https://www.fs.usda.gov/r01/alerts/r1-2023-02-ncde-food-and-wildlife-attractant-storage-order>

CAMPING: The Contractor may be allowed to camp during performance of the contract. Camping must be approved in writing by the District Ranger, and may be subject to additional terms. The District Ranger may designate a campsite and a permit will be required. All clean-up or restoration of the site is the responsibility of the Contractor and must be completed before a campsite is vacated. See Section H for terms.

NON-PERFORMANCE: Cutting non-designated trees or not cutting designated trees will be considered non-performance. If non-performance cannot be remedied (i.e., reworked), payment for the pertinent acres will be forfeited, and damages may be assessed.

PAYMENT: Payment for performed work will be based on actual acres completed by the Contractor and accepted by the Government. Payment will be processed for completed areas only.

CONTRACTOR REPRESENTATIVE: The contractor shall provide a contract representative for the performance of the work. The name of this person and an alternate(s) who shall act for the contractor when the contractor is absent shall be designated in writing to the contracting officer. The contractor representative or alternate shall have full authority to act for the contractor on all contract matters relating to daily operation of this contract. The contractor representative and alternate(s) must be able to read, write, speak, and understand English, and effectively communicate with their crew members.

Contract Time and Seasonal Restrictions*:

Work Coordination & Seasonal Restrictions Table		
Requirement	Time Frame	Details
Crew Arrival Notice	Minimum 5 business days	Crews must notify COR before arriving.
Crew Departure Notice	Within 24 hours	Crews must inform COR before leaving, preferably sooner.
Work Start Deadline	Within 7 days	Work must begin within 7 days of receiving a Notice to Proceed, unless other arrangements are made.
Minimum Production Rate	3 acres/day (per person)	Additional days are allocated for mobilization between districts/zones.
Notice to Proceed (NTP) Start	- Date specified (if hand-delivered) 3 days after Certified Mail notice When work actually begins (whichever is sooner)	Failure to pick up Certified Mail is not excusable.
Seasonal Timing Restriction (Units 960 and 932 only)	Cutting permitted only July 15 – October 15	

Arriving crews will give COR a minimum of 5 business days' notice.

Departing work crews will notify COR within the preceding 24 hours before leaving.

After receiving an award, coordination with the COR on a work schedule is critical, as work will commence no later than 7 days after receiving a Notice to Proceed, unless other arrangements are made in advance.

The Government will issue a Notice to Proceed as soon as weather and ground conditions are favorable for work in one or more of the areas. Contract time will start (1) on the date specified on the Notice to Proceed if the notice is hand-delivered, or (2) Contract Time will start on the third day after the post office has issued a Notice of Certified Mail to the Contractor; or (3) Contract Time will start when thinning and/or other work commences, whichever is sooner. Failure of the Contractor to pick up Certified Mail will not be considered excusable.

SECTION B – SPECIFICATIONS

- Thin trees 1 foot tall to 8 inches DBH to 15x15-foot spacing.
- Vary spacing by up to 50% to select the best leave trees and implement the species preference.
- Remove all trees less than 8 inches DBH within 10 feet of the dripline of any well-formed, healthy overstory trees.
- Stump Height: Trees shall be completely severed from the stump on a horizontal plane. Stump height shall not exceed 6 inches above ground level as measured from the uphill side of the tree or 4 inches above natural obstacles.

Leave Tree Selection Criteria

- Select leave trees in the following priority: Ponderosa Pine>Western Larch>>Douglas-fir>Lodgepole Pine.
- Desirable leave trees shall generally be those of the tallest height, largest crown (in dominant and co-dominant crown positions), and free of insect, disease, or damage. See Section C for definition of desirable leave tree characteristics.
- Do not cut Aspen or other hardwoods.

Constraints and Mitigations

- Known TEPC/S species in the project area include Scalloped Moonwort in unit 940. An exclusion with GPS coordinates has been marked with flagging.

SLASH TREATMENT- All items**Hand Piling Requirements**

- Slash material less than 6 inches in diameter must be piled. Material greater than 6 inches shall be limbed and bucked into 6 foot lengths with boles lying flat in contact with the ground. Limbs and tops shall be piled.
- All trees must be fully severed from the stump, with stump heights not exceeding 6 inches and no live lower limbs remaining. Over natural obstacles, stumps should not exceed 4 inches.
- Piles shall be no more than 6 feet in diameter and should be a minimum of 6 feet in height.
- Material shall be piled in a parallel configuration and perpendicular to the slope to reduce roll out.
- Material to be piled shall be bucked into 6 foot or less lengths.
- Slash treatment must be concurrent and progressive with thinning. The Contractor shall not move onto a new unit without completing slash treatment unless explicitly approved by the COR.

Pile Location

- Piles must be placed outside of driplines of residual trees, with priority given to natural openings when available. In closed-canopy stands, piles should be placed between trees.
- No piles shall be made within 20 feet of roads, trails, signs, fences, ditches, firelines, forest boundaries, or infrastructure without prior COR approval.
- Slash may be moved up to 50 feet to protect residual trees and meet pile size requirements. If insufficient material is available, the Contractor may lop and scatter material, ensuring it remains below 18 inches from the ground.
- Slash must be removed from the following buffer zones:
 - 5 feet from road-cut slopes and ditches
 - 2 feet from road-fill slopes
 - 15 feet from culverts
 - Unit boundaries, roads, fence lines, stock driveways, and established land corners
- Any slash that falls outside unit boundaries must be retrieved and piled within the unit.

Pile Construction & Covering

Hand piling Paper. The Contractor shall supply all burnable 80# Kraft water-repellant sheeting necessary to be used in the covering of hand piles.

- Piles must be compact and stable, 6 feet in diameter and a minimum of 6 feet in height.
- A sturdy base must be established to prevent toppling. Large material should be placed at the top to facilitate compaction. Jack-strawed, crisscrossed, or loosely stacked piles are unacceptable.
- All material exceeding 6 feet in length must be cut before piling. Any protruding material must be bucked and added to ensure a clean burn. One larger pile is preferred over multiple small piles.
- Each pile must be 75% covered with a burnable water-repellant paper, secured by layering slash over the covering to prevent displacement. The Contractor must supply all necessary paper.

SECTION C - DEFINITIONS

Accessible. Units are accessible when they are within 1,000 feet of a road open for public use or an administrative use road (gated for public use but can be made available for Contractor use) Units that are not accessible will have a walk-in price included.

Acceptable (Stocking) Density. The number of trees between the minimum and maximum specified in the Silvicultural Prescription Summary.

Acre. A unit of area equal to 43,560 square feet.

Calendar Days. Every day shown on the calendar, Sundays and holidays included.

Chain. A common unit of measurement in forestry that equates to 66 feet.

Contracting Officer's Representative (COR). The onsite contract administrator for the Contracting Officer. The duties and responsibilities of the COR are defined in the letter of designation issued by the Contracting Officer

Crop Tree. A tree that will be a component of a future commercial harvest or managed into the future. In this contract, it is interpreted as the trees specified in the Silvicultural Prescription Summary that are of preferred species, free of insect or disease infection, or if it is present does not threaten the tree survival or growth, exhibits leader dominance and growth, exhibits little or no damage that affects tree survival or growth, and has crown ratio of greater than 40% (ratio of crown to overall length).

Deficiency (or Discrepancy). Trees that are unsatisfactory either because they were cut and met the requirements for a leave tree or were not cut and should have been. There are three categories of deficiencies described in the Inspection Procedure (Section 2.2, Exhibits 03).

Category A deficiencies – cutting trees that should not be cut or damaging selected leave trees. These are non-correctable errors.

Category B deficiencies - leaving trees that should be cut. These are excess trees and are correctable errors.

Category C deficiencies – other types of errors such as not completely severing trees from stumps, leaving small trees, and other errors as described on the inspection form.

Desirable Leave Tree Characteristics. Trees that are desirable to be leave trees have the following characteristics:

- Crown class of dominant or co-dominant
- Good coloration
- Well-formed crown
- Free or limited presence of insect or disease damage and/or symptoms; damage
- or symptom does not affect growth or survival
- Vigorous annual terminal growth (especially in last 1 to 3 years)
- Generally the trees with the largest height and diameter
- Crown ratio is 40% or greater.
- Straight stem

Characteristics of trees that are not desirable for leave trees:

- Multiple tops
- Poor crown form
- Crook or sweep in bole
- Dead or broken tops
- Poor coloration
- Large branch diameter
- Presence of insect or diseases
- Branches more than 45 degrees from horizontal
- Physical or mechanical damage
- Suppressed

- Poor annual growth
- Sucker limbs

Diameter Breast Height (d.b.h.). The diameter of the trunk measure at a point 4-1/2 feet above the ground level on the uphill side of the tree.

Dripline: A line extending vertically from the exterior edge of a tree live crown to the ground.

Bole: A trunk of main stem of a tree. Note: seedlings and saplings have stems rather than boles.

Excess Tree. An uncut tree that according to contract specifications should have been cut. Excess trees are considered a Category B deficiency in the inspection procedure; these are generally correctable.

Fuels Reduction: Manipulation, including combustion or removal of fuels to reduce the likelihood of ignition and/or to lessen potential damage and resistance to control. Often includes thinning and/or prescribed burning.

Fuel Treatment: Any vegetation manipulation and/or removal/modification of wildland fuels to reduce the likelihood of ignition, to reduce potential fire intensity and spread rates, to lessen potential damage and resistance to control, or to limit the spread and proliferation of invasive species and diseases. Fuels treatments achieve site-specific fire and resource management objectives under approved land use plans and with full compliance to NEPA and other regulatory statutes.

Improperly Cut/Pruned Tree. A tree that was cut that should have been a leave tree based on contract specifications. Also includes any leave tree that was damaged by the Contractor's operations. This is considered a Category A deficiency and is not a correctable deficiency.

Inspection Procedure. The plot inspection procedure described in Exhibit 03. Used to determine quality of work.

Leave Tree. Any tree that is selected or required to be left standing according to requirements in The Statement of Work and/or the silvicultural prescription.

Leave Trees per Acre. The number of leave trees within one acre. Generally referred to average leave trees per acre calculated from one or more plot samples.

No. of trees per plot * reciprocal of plot size = leave trees per acre
and

$$\frac{\text{Total trees on all plots}}{\text{Total No. plots taken}} * \text{reciprocal of plot size} = \text{leave trees per acre}$$

Period of Performance (also Performance Period of Contract Time). The number of calendar days allowed for completion of work under each Task Order and/or the number of calendar days under the parent contract.

Quality Assurance. The actions taken by the Government to assess the results to determine that they meet contract requirements. The methods for quality assurance are described in the Quality Assurance Surveillance Plan (QASP).

Quality Control. Those actions taken by a Contractor to control the production of outputs to ensure that they conform to the contract requirements. The methods for inspecting for quality control are described in the Contractor's Quality Control Plan (QCP).

Sapling. Usually a young tree larger than a seedling but smaller than a pole generally between 1" and 4" inches DBH.

Satisfactory Leave Tree. Tree that is selected to be left on the unit that meets contract specifications. Tree is larger than the minimum height required to be cut.

Silvicultural Prescription. A document written or approved by a certified silviculturist that describes management activities needed to implement silvicultural treatment or treatment sequence. The prescription documents the results of an analysis of present and anticipated site conditions and management direction. It also describes the desired future vegetation conditions in measurable terms. It documents a planned series of treatments designed to change current stand structure and composition to one that meets management goals. The prescription normally considers ecological, economic, and societal objectives and constraints.

Silvicultural Treatment. A forest management activity such as thinning, harvesting, planting, pruning, prescribed burning, or site preparation that is designed to alter the establishment, growth, composition, health, and quality of forests and woodlands to meet the diverse needs and values of landowners and society on a sustainable basis.

Slashing. Cutting of undesirable live or dead conifer and/or shrub species from designated crop/leave trees or from within an entire unit to facilitate site preparation or fuels reduction activities designed to improve the stand composition and condition. The term “slashing” does not refer to slash treatment, which is a separate activity.

Small Trees. Trees to be cut that are taller than the minimum tree height to cut and shorter than the “small tree height” specified in the Silvicultural Prescription Summary. Trees defined as “small trees” shall be cut, small trees that are not cut are considered a Category C Deficiency. Small Trees. Trees to be cut that are taller than the minimum tree height to cut and shorter than the “small tree height” specified in the Silvicultural Prescription Summary. Trees defined as “small trees” shall be cut, small trees that are not cut are considered a Category C Deficiency.

Spacing. The horizontal distance from the trunk of one leave tree to the trunk of the next nearest leave tree. Average spacing is calculated from the leave trees per acre.

Surplus Tree. A tree that is left in the unit that is in addition to the other satisfactory leave trees and is larger than those defined as small trees. It is not counted in the acceptable tree per acre calculation but does contribute to the total trees per acre on the unit. A surplus tree is coded as S3 or S4 trees in the inspection procedure.

Thinning (Tree Thinning) - A cultural treatment made to reduce stand density of trees primarily to improve growth, enhance forest health, or recover potential mortality. Types of thinning include the following:

- A. Free: The removal of trees to control stand spacing and favor desired trees, using a combination of thinning criteria without regard to crown position.
- B. Mechanical (syn. geometric thinning): The thinning of trees in either even- or uneven-aged stands, involving removal of trees in rows, strips, or by using fixed spacing intervals.
- C. Thinning from above (syn. crown thinning): The removal of trees from the dominant and codominant crown classes in order to favor the best trees of those same crown classes.
- D. Thinning from below (syn. low thinning): The removal of trees from the lower crown classes to favor those in the upper crown classes.

Contractor shall refer to the Silvicultural Prescription Summary for thinning treatment guidelines or identified in the task order.

Thinning Slash. Debris created from work under this contract, including all cut trees and shrubs including the tops, trunks, and branches.

Unsatisfactory Tree. A tree that fails to meet contract standards; includes but is not limited to:

- (1) Cutting the wrong tree, failure to cut a correct tree, failure to completely sever a live limb, etc.
 - (2) Failure to prune a tree or pruning that is not in contract.
 - (3) Failure to girdle a tree that meets the specifications is also an unsatisfactory tree.
- Unsatisfactory trees are considered a deficiency or discrepancy in contract inspection and may be either a Category A, B, or C deficiency.

SECTION D - DELIVERY

Contract Performance Time and Required Rate of Progress

The Contractor shall maintain progress at a rate that will assure completion within the performance period. The minimum acceptable rate of progress will be calculated by dividing the total units of work for each item by performance time specified.

Contract Time: (See Period of Performance definition). The Contractor shall start work promptly after receipt of a Notice to Proceed. Each Item will run concurrently. The Contractor shall maintain progress at a rate that will assure completion within the stated contract time. The contract time will generally not exceed a required rate of progress exceeding that determined from the accepted work plan.

All Items	Estimated Begin Date	Acres	Completion Date
Mandatory Units- 613a, 613b, 610, 612, 932, and 960	July 15, 2026	107	October 15, 2026
Optional Units- 940, 941	July 15, 2026	137	October 15, 2026

SECTION E - Contract Administration Information

MEASUREMENT

The area to be thinned is stated in the Summary Information Chart and found within the attachments. All linear and area measurements under this contract are measured on a horizontal plane within the established boundaries. Acreage for thinning units as described on the Schedule of Items, Summary Information Chart and have been estimated from maps or aerial photography prior to the establishment of boundaries posted on the ground. The government may recalculate unit acreage using GPS (geographical positioning system) methods or on-ground measurements following establishment of on-ground boundary locations. Recalculation of unit acreage may result in a net increase or decrease in Contractor's final payment. Contractor will be paid based on the Government's most accurate acreage estimates of work that is completed and accepted

Re-measurement- The Contractor may at any time after award request re-measurement of any sub-item. The request must be in writing within 10 calendar days after completion of a unit or pay item. Re-measurement shall be made within established boundaries.

If re-measurement indicates a variance of 5 percent or less in the acreage stated in the Schedule of Items, there will be no adjustment in acres and the Contractor shall pay for the actual cost of re-measurement. If re-measurement results in a variance greater than 5 percent in the acreage stated in the Schedule of Items, payment shall be based on the re-measured acreage and the Government shall pay for the re-measurement.

GOVERNMENT FURNISHED PROPERTY, MATERIALS, SERVICES FAR 52.245-1 GOVERNMENT PROPERTY (SEP 2021)

The Government will furnish the following:

- Vicinity maps that show the general location of the areas on each unit.
- The Government will provide access to the point indicated on project maps. The Government will initially clear downed trees from the access roads. Access roads are accessible by 2-wheel drive vehicles
- If units are behind Forest Road closures (locked gates); Government will provide a permit and combination lock to Contractor.

The Contractor shall supply all other tools, supplies and materials to complete the project, including inspection sheets, paper for covering pilings, etc.

Key Personnel and Required Qualifications or Certifications

On-site Representative. The Contractor's on-site representative shall be fully conversant and literate in

the English language and shall be in the work area whenever work is in progress.

SECTION F - SPECIAL CONTRACT REQUIREMENTS

F- 2 Fire Control

(a) *Contractor's Responsibility for Contractor-Caused Fires.* The Contractor, whether or not directed by the Forest Service, shall immediately extinguish, without expense to the Government, all fires on or in the vicinity of the project which are caused by Contractor's employees, whether set directly or indirectly as a result of Contractor operations. The Contractor may be held liable for all damages and costs of additional labor, subsistence, equipment, supplies, and transportation resulting from fires set or caused by the Contractor's employees or resulting from contract operations.

(b) *Other Fires.* For the purpose of fighting forest fires on or in the vicinity of the project which are not caused by the Contractor or the Contractor's employees, the Contractor when requested by the Contracting Officer shall place the employees and equipment temporarily at the disposal of the Forest Service. Payment for such services will be made by the Government at not less than the current rate for fire-fighting services established by the Forest Service in the area concerned.

Any employees and equipment furnished will be relieved from fire fighting as soon as the Forest Service finds that it is practicable to employ other labor and equipment adequate for the protection of the area.

An equitable adjustment in contract time may be made for this period.

(c) *Fire Protection Requirements - Fire Plan.* At all times during closed fire season period, as specified by State law, the Contractor shall comply with each of the following provisions to the extent applicable to the Contractor's operation under the contract.

(1) *Fire Tools.* The Contractor will provide for each employee in the contract area at least one approved handtool of a type appropriate in the contract area, such as shovel, pulaski, or ax. Tools required and furnished under (2) and (4) below, shall count toward fulfillment of the above requirement. Where additional tools, beyond those required under (2) and (4) below, are to be provided, the Contractor shall seal such tools in one or more boxes painted red and marked "Tools for Fire Only." All tools required herein shall be kept sharp and in good serviceable condition and maintained at locations to be designated by the Forest Service.

(2) *Fire Extinguishers and Tools on Mobile or Stationary Equipment.* Each unit of powered equipment used in connection with this contract, including automobiles, trucks, tractors, etc., shall be equipped with serviceable tools and fire extinguishers as follows:

One - fire extinguisher, dry chemical type of not less than 2-1/2 pound capacity with 4 BC or higher rating.

One - shovel, round point #0 lady or equal.

One - ax, 2 pounds or over, 26-inch minimum length, or one pulaski.

One - water container (at least 1-gallon capacity), not required with stationary equipment.

(3) *Spark Arresters.* Each internal combustion engine shall be provided with a spark arrester or spark arresting device approved by the Forest Service. Exceptions where the Forest Service may approve mufflers, or other equipment in lieu of spark arresters qualified and rated under Forest Service Standard 5100-1a are: (a) small multiposition engines, such as chain saws, shall meet Society of Automotive Engineers J335b standards; (b) passenger-carrying vehicles and light trucks may have baffle-type mufflers with tail pipe; (c) heavy-duty trucks may have a vertical stack exhaust system and muffler, provided the exhaust stack extends above the cab of the vehicle. An exhaust-driven turbocharger is considered to be a satisfactory spark arrester. Internal combustion engine exhaust systems, arresters, and other devices must be properly installed and maintained.

(4) *Powersaws.* For each powersaw used in connection with this contract, the following will be provided:
One - shovel, round point #0 lady or equal. Shovel must be immediately available for use.

One - Fire extinguisher, containing not less than 8 ounces of extinguisher fluid, or a dry chemical powder-type of not less than 1-pound capacity. The extinguisher must be immediately accessible to the saw operator at all times. Any fueling or refueling of a powersaw shall only be done in an area which has first been cleared or is free of all material capable of carrying fire; powersaw shall be moved at least 10 feet from place of fueling before starting.

(5) *Blasting*. Fuse or prima cord shall not be used unless authorized in writing by the COR with special precautions stated.

(6) *Smoking*. Smoking shall not be permitted within the contract area except on surfaced or dirt roads, at landings, within closed vehicles, in camps, or at other posted places, and shall never be allowed while working or traveling on foot.

(7) *Storage of Petroleum and Other Highly Flammable Products*. Gasoline, oil, grease, or other highly flammable material will be stored either in a separate building used exclusively for such storage, or at a site where all combustible debris and vegetation is cleared away within a radius of 25 feet. Fire extinguishers and/or sand barrels may be required at such locations specified by the Forest Service when unusually hazardous conditions exist.

(8) *Debris Burning and Warming Fires*. Burning permits will be required for all debris burning fires. Lunch and warming fires may be allowed in fireproofed areas during periods of low fire danger if and as specified in the fire plan. Such fires must not be left burning unattended.

(9) *Precautions for Stoves*. Stovepipes on all temporary buildings, trailers, and tents using wood burning stoves, will be equipped with roof jacks and serviceable spark arresters of mesh with openings no larger than 5/8 inch.

All stovepipes, inside and out, will not be closer than 2 feet from any wood or other flammable material or 1 foot if the combustible material is protected by a metal or asbestos shield.

(10) *Welding*. Welding or use of cutting torches will be permitted only in areas that have been cleared or are free of all material capable of carrying fire. Flammable debris and vegetation must be removed from within a minimum of 10 feet radius of all welding and cutting torch operations. A shovel and a 5-gallon standard backpack water container (filled) with handpump attached, shall be immediately available for use in the event of a fire start.

(11) *Fire Plan*. Prior to initiating work on the contract area, during the closed fire season period, a fire prevention and suppression plan will usually be prepared. The Contractor and the Forest Service will jointly prepare this plan. Such plan shall include a detailed list of men and equipment at the Contractor's disposal for implementing the plan. The fire plan shall also specify additional measures and/or special requirements, such as Hoot Owl restrictions, necessary during periods of critical fire weather conditions.

When Hoot Owl restrictions are invoked, the Forest Service may curtail or shut down all or portions of a Contractor's operations. The following requirements may be imposed:

(i) All high fire risk operations could be terminated at 1300 local time.

(ii) All burning could be stopped, including debris burning fires.

(iii) Patrolman may be required for a period of 2 hours after high fire risk operations and 1 hour after end of work shift. The Contractor shall provide the patrolman unless the contract is for equipment rental, in which case the Government will provide the patrolman.

(12) *Pump and Trailer*. Not required.

(13) *Burning*. Before starting any open burning, the Contractor shall comply with the following:

(i) Submit a burning plan, subject to approval by the Contracting Officer, designed to minimize the impact on air quality and to lessen any fire damage.

(ii) Obtain a burning permit from the District Ranger.

- (iii) Use weather forecasts as far as possible in scheduling burning for more favorable dispersal of smoke.
- (iv) Fuel shall be reasonably free of dirt and piled to facilitate rapid and complete combustion. Piles shall be tended during burning operations to maintain combustion and to eliminate unnecessary smudges. Piles shall be patrolled during off-work hours to avoid wildfires.
- (v) Unless fire season controls dictate otherwise, burning shall be scheduled, as far as practicable, for the most favorable conditions during the burning period.
- (vi) Under certain atmospheric conditions, smoke accumulations may become excessive and in these cases, the Regional Forester may, at his/her discretion, prohibit all open burning for definite periods within specific areas of the National Forest.

F- 3 Weed Free Practices

Equipment, vehicles and trailers shall be free of all dirt, plant parts and material that may carry noxious weeds into the project area(s). In order to prevent the potential spread of noxious weeds into the project area the Contractor shall maintain clean equipment, vehicles and trailers during contract performance, including undercarriages and tires of equipment.

(a) INCLUDED cleaning: For the purposes of determining Contractor compliance with this requirement, the Contractor shall present each piece of equipment, vehicle and trailer to be used in performance of this contract for inspection by the Government at the following times, at a location agreed to by the Contracting Officer. No separate payment will be made for the following requirements:

- Requirements per vehicle and trailer:
 - 1. Prior to the initial entry onto the Missoula or Seeley Lake Ranger Districts
 - 2. Any time Contractor equipment, vehicles and/or trailers enter or exit the State of Montana.
 - 3. Up to three additional times each year, per Task Order, for each vehicle and/or trailer at the discretion of the Contracting Officer, on dates chosen by the Contracting Officer.

F- 4 Pre-Work Conference

Prior to commencement of work, the Contractor shall attend a meeting to discuss the contract terms, work performance requirements, and safety. Also at this meeting such items as work progress schedule, quality control, camping/worksites plan, and fire prevention plans shall be finalized in writing.

F- 5 Camping and Worksite Conditions

(a) Camping and Worksite Plan shall be consistent with requirements set forth in this section, the camping permit if required, and the Northern Region Food Storage Order R1-2023-02. The Contractor shall provide a general plan with the technical proposal, and shall provide a more specific plan based on items awarded, prior to start work.

(b) The Contractor shall be aware of and abide by the rules of the Lolo National Forest applicable to forest visitors.

(c) The Contractor shall obtain a camping permit from the Lolo Forest prior to camping on Forest Service land. Final payment shall be withheld until the authorized camping area has been cleaned up to the requirements of the Camping Permit.

If the Contractor does not obtain a camping permit but requires Contractor employees to obtain the camping permit, the Contractor remains responsible for campsite clean up and Contractor employees conduct while camping on National Forest land.

(d) Contractor Information: The Contractor shall abide by the OSHA's Field Sanitation Standard, Fact Sheet No. OSHA 92-25, which applies to any agricultural establishment hiring 11 or more workers for hand labor.

F- 6 Camping Provisions for Labor Intensive Contracts

The following provisions apply to all camping on National Forest lands during performance of this contract:

- (a) These provisions are in addition to those contained in, or provided for, in the clause titled "Use of Premises", in this contract.
- (b) Every structure used as shelter shall provide protection from the elements. Where heat adequate for weather conditions is not provided, other arrangements should be made to protect workers from the cold. Firewood may be cut only after obtaining a District Firewood Permit.
- (c) The campsite will not encroach beyond the boundaries designated by the Forest Service. The campsite shall be located so as to minimize impacts on streams, lakes, and other bodies of water. No camping shall be permitted within developed recreation sites or along primary recreation roads.
- (d) The campsite shall have a clean appearance at all times.
- (e) Upon abandonment of any campsite, or termination, revocation, or cancellation of camping privileges, the Contractor shall remove, within 10 calendar days, all structures and improvements except those owned by the United States, and shall restore the site, unless otherwise agreed upon in writing or in the camping permit. If the Contractor fails to remove all structures or improvements within the 10 calendar days, they shall become the property of the United States, but that will not relieve the Contractor of liability for the cost of their removal and restoration of the site.
- (f) Unless otherwise designated by the Contracting Officer, the use of this area is not exclusive, and may be granted to other Permittees, Contractors, or recreating public. Disorderly conduct is not permitted.
- (g) Damaging or removing any natural feature or other property of the Forest Service is prohibited.
- (h) Servicing of equipment in the campsite is not permitted, unless the campsite is within the project area.
- (i) Sanitary facilities shall be provided for storing food. Ice chests or coolers, with ice supply made from potable water and replenished as necessary, shall be provided and sufficient for the storage of perishable food items.
- (j) An adequate and convenient potable water supply shall be provided in each camp for drinking and cooking purposes.
- (k) Toilet facilities adequate for the capacity of the camp shall be provided and supplied with adequate toilet paper. Such facilities shall be serviced and maintained in a sanitary condition.
- (l) Garbage shall be collected, stored, and disposed of in such a manner as to prevent scattering by the wind, minimize attraction of flies, and discourage access by rodents.
- (m) Basic first aid supplies shall be maintained, available, and under the charge of a person trained to administer first aid. The supplies shall include:
 - (1) Gauze pads (at least 4x4 inches)
 - (2) Two large gauze pads (at least 8x10 inches)
 - (3) Box adhesive bandages (band-aids)
 - (4) One package of gauze roller bandage at least 2 inches wide
 - (5) Two triangular bandages
 - (6) Scissors
 - (7) At least one blanket
 - (8) Tweezers
 - (9) Adhesive tape
 - (10) Latex gloves
 - (11) Resuscitation device such as resuscitation bag, airway, or pocket mask
- (n) Any washing of laundry shall be done in such a way as to provide for washing and rinsing without polluting

lakes, streams, or other flowing water.

(o) Waste water must be disposed of away from living and eating areas and in a fashion that minimizes pollution to lakes, streams, and other flowing water.

(p) The Contractor shall take all reasonable precautions to prevent and suppress forest fires. No material shall be disposed of by burning in open fires during the closed season established by law or regulation without the written permission from the Forest Service.

(q) The Contractor shall comply with the following fire regulations during fire season:

(1) A shovel, axe or pulaski, 10 quart pail which is full of water for immediate use and a fire extinguisher with an Underwriters Laboratory (UL) rating of at least 1:A 10:BC is required during the fire season.

(2) All fire rings or outside fireplaces will be approved by the Forest Service representative. The area will be cleared down to mineral soil for a distance of 1 foot outside of the ring or fireplace and it will not have any overhanging material. Fire rings will be dismantled and material disposed prior to leaving the site.

(3) All generators and other internal combustion engines will be equipped with USFS approved spark arrestors and/or factory designed muffler and exhaust system in good working order. They will be located in a cleared area with the same requirements as in (b).

(4) All fuel will be stored in UL approved flammable storage containers and be located at least 50 feet from any open flame or other source of ignition.

(r) Any violation of these conditions constitutes a breach of contract, and may result in revocation of camping approval.

(s) The Forest Service reserves the right to terminate a camping permit at any time.

F- 7 Safety Plan

a. In compliance with FAR 52.236-13 (see Paragraph I.21.), the Contractor shall prepare a written Safety Plan which addresses the specific hazards of the work site, and shall include working in areas of dead trees and falling debris. The Contractor shall identify the specific conditions that the Contractor considers is a hazard. The Safety Plan shall also address the personal protective equipment and mitigating measures the Contractor will take to increase safety on the worksite.

b. In addition to complying with all of the requirements specified in FAR 52.236-13 Accident Prevention (JUL 2025), Alternate I, the Contractor shall ensure that the Contractor's written plan for implementing the clause also includes:

a. Identification of medical facilities in the area of contract performance, including location and contact information (i.e. phone numbers, radio contact protocols);

b. Identification of other emergency dispatch / communication facilities in the area of contract performance, including location and contact information (i.e. phone numbers, radio contact protocols);

c. Contractor's communication plan in event of emergency (i.e. cell phones, radios, etc.);

d. Contractor's First-Aid resources, including medical kits and identification of trained personnel (First Responder, EMTs, etc.).

e. Emergency Evacuation procedures/protocols.

c. The Contractor Representative for each Task Order shall have a printed copy of the Safety Plan on the worksite at all times and shall ensure the employees know where it is located.

d. The Contractor's Safety Plan shall be written in English and in a language understandable to the employees if those employees are not all fluent in English.

F- 8 Personal Protective Equipment

(a) The Contractor will train in the safe operation and use of equipment to all workers using such equipment.

(b) Personal protective equipment, including personal protective equipment for eyes, face, head, and extremities shall be provided, used, and maintained in a sanitary and reliable condition wherever it is necessary by reason of hazards or processes encountered in a manner capable of causing injury or impairment in the function of any part of the body.

(c) Defective or damaged personal protective equipment shall not be used.

(d) The Contractor shall provide, at no cost to the employee, to each employee who operates a chain saw, chain saw chaps and assure the chaps are worn during saw operations. These chaps must be approved by Underwriters Laboratory or meet Forest Service specification 6170-47. The chaps shall cover the full length of the thigh to the top of the boot on each leg.

(e) The Contractor shall assure that each employee wears foot protection that provides adequate traction and ankle support. Employees operating chain saws shall wear foot protection that is constructed with cut-resistant material which will protect the employee against contact with a running chain saw.

(f) The Contractor shall provide, at no cost to the employee, and assure that each employee who works in an area where there is potential for head injury from falling objects or flying objects wears a hard hat that meets the minimum requirements of American National Standards Institute (ANSI) standard Z89.1-1997.

(g) The Contractor shall provide, at no cost to the employee, eye protection where there is potential for eye injury due to flying objects. This eye protection must meet the minimum requirements of ANSI standard Z87.1-2003.

(h) The Contractor shall provide, at no cost to the employee, hearing protection where there is a potential for hearing loss due to high intensity noise e.g., chain saw operation.

